



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT 1 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12013
(THIRD REVISION)

EXPIRATION DATE: January 31, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: All Pure Chemical Company
Walnut Creek, CA
2. PURPOSE AND LIMITATION: This exemption authorizes the discharge of certain Class 8 liquids from a UN31HA1 Intermediate Bulk Container (IBC) without removing the IBC from the vehicle on which it is transported. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 177.834(h) in that an IBC is unloaded while on a motor vehicle, the marking requirements in 49 CFR 172.302(c).
5. BASIS: This exemption is based on the application of All Pure Chemical Company dated December 8, 1997, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hypochlorite solutions	8	UN1791	III
Phosphoric Acid Solution	8	UN1805	III

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Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Sulfuric Acid Solution	8	UN1830	II
Potassium Hydroxide solution	8	UN1814	II
Sodium Hydroxide Solution	8	UN1824	II
Hydrochloric Acid Solution	8	UN1789	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are UN31HA1 composite IBCs with plastic inner receptacles and steel outer packagings having capacities not exceeding 400 gallons.

b. OPERATIONAL CONTROLS -

(1) The IBC must be attended at all times during unloading operations by a qualified person. For the purposes of this requirement, "attended" and "qualified" shall have the meanings described in §177.834(i)(3) and (4), respectively.

(2) Hoses may not be attached to discharge outlets during transportation.

(3) The IBC may be unloaded but may not be refilled while on a motor vehicle.

8. SPECIAL PROVISIONS:

a. MARKING - The marking requirements of 49 CFR 172.301(c), are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

10/1/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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